

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/05/26 TIME: 1:30 P.M. DEPT: H CASE NO: CIV2301381

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: JOHN MCNEILLY, ET AL.	
VS.	
DEFENDANT: FCA US, LLC, ET AL.	

NATURE OF PROCEEDINGS: 1) MOTION – SEAL
2) MOTION – GOOD FAITH SETTLEMENT

RULING

FCA US LLC filed a motion for determination of good faith settlement and a motion to seal “unredacted” settlement agreement and release limited to the settlement amount between Plaintiffs and FCA US LLC. The motion was served on all parties and no opposition was filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54, subd. (c).) Failure to oppose a motion may also lead to the presumption that [plaintiff] has no meritorious arguments. (See *Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal. App. 3d 481, 489, disapproved of by *Garcia v. McCutchen* (1997) 16 Cal.4th 469, on other grounds.)

The Court grants the motions in light of the non-opposition.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for August, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjE0SHNzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court’s website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/05/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0001622

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: FELIPE GONZALEZ
MARTINEZ, ET AL

vs.

DEFENDANT: 1125 SIR FRANCIS
DRAKE BOULEVARD OPERATING CO.,
LLC

NATURE OF PROCEEDINGS: 1) MOTION – SANCTIONS
2) MOTION – COMPEL ANSWERS TO INTERROGATORIES – DISCOVERY
FACILITATOR PROGRAM

RULING

Plaintiffs Felipe Gonzalez Martinez and Leonardo Tamayo Gallegos filed a motion to compel answers to what they refer to as “Round Two Discovery” of Interrogatories, Requests for Admission, Request for Production of Documents, and Form Interrogatories. Plaintiffs further request sanctions. The first round of discovery also prompted the filing of a request to participate in the discovery facilitator program. On November 19, 2025, the Court issued an order granting Plaintiffs’ motion in part, finding that several of the responses to requests were improper.

The Round Two Discovery pertains to discovery which has been at issue for quite some time. On August 28, 2025, the parties stipulated to participate in the discovery facilitator program on Round Two before filing a motion to compel.

The parties had been working with Discovery Facilitator Janet Lee Miller who was appointed on September 18, 2025. Plaintiffs assert that as part of the agreements with the Facilitator Miller, Defendant had agreed to produce and respond in full compliance with the discovery, but Defendants have failed to comply with numerous items, and have remained evasive in their responses. They assert that their failure to comply with the court’s order and with agreements made with Facilitator Miller is evasive and akin to violating a court order.

Defendant 1123 Sir Frances (“Defendant”) prepared a declaration stating that they were never opposed to signing the agreement with the Facilitator, but did not say they had done so. Defendant further asserts it is not opposed to continuing to work with the Facilitator as an